

National Portal Systems, LLC Privacy Policy

Last Modified: October 11, 2024

1. Introduction

National Portal Systems, LLC (together with its affiliates, parents and subsidiaries, “**NPS**” or “**we**” or “**us**”) respect your privacy and are committed to protecting it through our compliance with this policy.

This Privacy Policy (our “**Privacy Policy**”) describes the types of information we may collect from you or that you may provide when you visit the website www.communityresport.com (the “**Website**”), through our Resident Portal Mobile Application that you may download from an official mobile application store, such as the Apple App Store® or the Google Play Store® (the “**Mobile Application**”), and/or access our Community Resident Portal (the “**Portal**”) and our practices for collecting, using, maintaining, protecting, and disclosing that information. Collectively, we refer to our Website, Mobile Application, and Portal as our “**Services**.” Our Mobile Application provides mobile access to our Website and Portal.

Throughout this Privacy Policy, the term “**Personal Data**” means any information that identifies, relates to, describes, references, or is capable of being associated with, or could reasonably be linked, directly or indirectly, with you or your household. The term “**Community Owner**” means an owner, operator, or manager of the community in which you reside.

Generally, the Community Owner controls your use of your Personal Data related to your residency (or application for residency) at a Community Owner’s property, such as your unit number, lease terms, credit history, rental amount, payment history, and maintenance requests and history (“**Community Owner Personal Data**”). NPS only processes Community Owner Personal Data on behalf of the Community Owner and in accordance with their instructions and all processing of Community Owner Personal Data is governed by the Community Owner’s Privacy Policy and not this Privacy Policy. For more information about the Community Owner’s processing of your Personal Data, please contact the Community Owner directly. This Privacy Policy applies to all other Personal Data that we collect and use for our purposes (“**NPS Personal Data**”).

This policy applies to information we collect on or through the Services.

It does not apply to information collected by:

- the Community Owner of the community where you reside;
- us on any other website or application operated by NPS or any third-party
- us related to your or any other individual’s employment or potential employment with us; or
- any third party, including through any application or content (including advertising) that may link to or be accessible from or through the Services.

Please read this policy carefully to understand our policies and practices regarding your information and how we will treat it. If you do not agree with our policies and practices, your choice is not to use our Services. By accessing or using our Services, you agree to this Privacy Policy. This Privacy Policy may change from time to time (see [Changes to Our Privacy Policy](#)). Your continued use of the Services after we make changes is deemed to be acceptance of those changes, so please check this Privacy Policy periodically for updates.

2. Children Under the Age of 18 or Under the Legal Age to Form a Binding Contract in Your Jurisdiction

Our Services are not intended for children under 18 years of age or the legal age to form a binding contract in your jurisdiction, whichever is higher. No one under this age may provide any information to or on the Services. We do not knowingly collect NPS Personal Data from children under this age. If you are under this age, do not use or provide any information on our Services or on or through any of its features or provide any information about yourself to us, including your name, address, telephone number, or email address. If we learn we have collected or received NPS Personal Data from a child under this age without verification of parental consent, or as permitted by the Rules of Professional Conduct, we will delete that information. If you believe we might have any information from a child under this age, please contact us at security@communityresport.com.

3. About You and How We Collect It

Generally.

We collect (either from you, automatically, or from the Community Owner) the following types of NPS Personal Data:

- NPS Personal Data by which you may be personally identified, such as your name, username, and password;
- traffic data, location data, logs, referring/exit pages, date and time of your visit to our Services, error information, clickstream data, and other communication data and the resources that you access and use on the Services; and/or
- about your internet connection, the equipment you use to access our Services and usage details.

We collect this information:

- directly from you when you provide it to us;
- automatically as you navigate through the Services; and
- from third parties, for example, the Community Owner of the community where you reside.

Information You Provide to Us

The NPS Personal Data we collect on or through our Services for our own behalf are:

- information that you provide by filling in forms on our Services. This includes information provided at the time of registering to use our Services, subscribing to our service, posting material, or requesting further services from us. We may also ask you for information when you report a problem with our Services;
- records and copies of your correspondence (including email addresses), if you contact us.

The NPS Personal Data we collect is required to enter into a contract with NPS, for NPS to perform under the contract, and to provide you with our products and services. If you refuse to provide such NPS Personal Data or withdraw your consent to our processing of NPS Personal Data (when appropriate), then in some cases we may not be able to enter into the contract or fulfill our obligations to you under it.

Information We Collect Through Automatic Data Collection Technologies

As you navigate through and interact with our Services, we may use third-party tools to automatically collect or derive Personal Data related to your use of our Services, including through the use of cookies, pixel tags, trackers, and other similar technologies. This may include:

- **Device and Browsing Information.** When you use our Services, we may collect browser type, domain name, page views, access times, date/time stamps, operating system, screen resolution, CPU usage, language settings, device type, unique ID, internet or mobile service provider, device carrier information, referring and exiting URLs, clickstream data, and other similar device and browsing information.
- **Activities and Usage.** We also may collect activity information related to your use of the Services, including via session replay software, such as information about the links clicked, searches, features used, modules or sections viewed, time spent within the Services, your interactions with us within the Services, and other similar activity and usage information.
- **Location Information.** We also may collect or derive general location information, such as through your IP address. Additionally, with your permission, we may collect geolocation information from your device. You may turn off location data sharing through your device settings.

The information we collect automatically may include Personal Data or we may maintain it or associate it with Personal Data we collect in other ways or receive from third parties. It helps us to improve our Services and to deliver a better and more personalized service by enabling us to:

- improve our Services and fix bugs;
- estimate our audience size and usage patterns;
- store information about your preferences, allowing us to customize our Services according to your individual interests;
- secure our Services;
- speed up your searches; and
- recognize you when you return to our Services.

The automatic data collection technologies that we use include:

- **Cookies (or browser cookies).** A cookie is a small file placed in the memory of your device. You can set your browser to refuse all or some browser cookies, or to alert you when cookies are being sent. However, if you do not consent to our use of cookies or select this setting you may be unable to access certain parts of our Services. You can find more information about cookies at <http://www.allaboutcookies.org> and <http://youronlinechoices.eu>.
- **Session Cookies.** We use session cookies containing encrypted information to allow us to uniquely identify you. When you access our Services, session cookies containing encrypted, unique identifiers that are tied to your connection and your login are placed on your device. These session cookies allow us to uniquely identify you when you access and use our services, recognize when you are logged into our Services, and to process online data transactions and requests. Session cookies are required to use our services.
- **Session Replay Software.** Session replay is a visual tool that captures information such as clicks, mouse movements, and page scrolls to recreate a user session on the website, allowing us to view how customers are interacting with our website.

Information We Collect From Third Parties

The information we collect from third parties, such as the Community Owner of the community where you reside, may include:

- leasing information included in your leasing agreement with the Community Owner and entered into the Services, such as your name, address, and social security number;
- information about maintenance requests such as service times, completion status, and root cause of the issue; and/or
- account information.

4. How We Use Your Information

We use information that we collect about you or that you provide to us, including any NPS Personal Data:

- to enable our Services, communicate with you about your use of the Services, provide troubleshooting, technical support, and for similar support purposes, respond to your inquiries, fulfill your requests, and to otherwise run our day-to-day operations;
- to provide our Services to our customers (Community Owners);
- to process payments (via our payment processors);
- to understand how you use the Services, and to evaluate, develop, and improve our Services and business operations;
- to address bugs and for internal quality control and training purposes;
- to fulfill any other purpose for which you provide it;
- to provide you and your property manager with notices about your account;
- to carry out our obligations and enforce our rights arising from any contracts entered into between us and others, including for billing and collection;
- to notify you about changes to our Services or any other products or services we offer or provide through them;
- to allow you to participate in interactive features on our Services;
- to allow you to submit maintenance requests;
- to help you manage your leasing agreement with your Community Owner;
- to display any bills you owe your Community Owner;
- to assess and implement mergers, acquisitions, reorganizations, bankruptcies, and other business transactions such as financings, and to administer our business, accounting, auditing, compliance, recordkeeping, and legal functions;
- in any other way we may describe when you provide the information; and

- for any other purpose with your consent.

5. Disclosure of Your Information

We may disclose NPS Personal Data that we collect or you provide as described in this Privacy Policy:

We may disclose Personal Data that we collect or you provide as described in this Privacy Policy:

- to contractors, service providers, and other third parties we use to support our business. These entities provide IT and infrastructure support services, and payment processing services. Our payment processors' privacy policies may be found at intellipay.com/privacy-policy/, <https://www.gozego.com/privacy-policy/>, <https://www.jackhenry.com/more-from-jha/pages/privacy-policy.aspx>, and www.paysafe.com/us-en/paysafegroup/comprehensive-privacy-policy/;
- to our customers (e.g., Community Owners);
- to other users to enable certain features of the Services;
- to a potential or actual buyer or other successor in the event of a planned or actual merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of NPS's assets, whether as a going concern or as part of bankruptcy, liquidation, or similar proceeding, in which NPS Personal Data held by NPS about our users is among the assets transferred;
- to fulfill the purpose for which you provide it. For example, if you provide personal information identifying your address for a maintenance request, we will transmit your address to the relevant maintenance worker to perform maintenance;
- for any other purpose disclosed by us when you provide the information; and
- with your consent.

We may also disclose your NPS Personal Data:

- to comply with any court order, law, or legal process, including to respond to any government or regulatory request;
- to enforce or apply our [Terms of Use](#); and
- if we believe disclosure is necessary or appropriate to protect the rights, property, or safety of NPS, our customers, or others.

6. Choices About How We Use and Disclose Your Information

We do not control the collection and use of your information collected by third parties described above in [Disclosure of Your Information](#). When possible, these organizations are under contractual obligations to use this data only for providing the services to us and to maintain this information strictly confidential. These third parties may, however, aggregate the information they collect with information from their other customers for their own purposes.

In addition, we strive to provide you with choices regarding the NPS Personal Data you provide to us. We have created mechanisms to provide you with control over your NPS Personal Data:

- **Tracking Technologies and Advertising.** You can set your browser to refuse all or some browser cookies, or to alert you when cookies are being sent. If you disable or refuse cookies, please note that some parts of this site may then be inaccessible or not function properly.

7. Accessing, Correcting, and Deleting Your Information

You can review and change some of your NPS Personal Data by logging into the Services and updating or deleting your Personal Data. You may also notify the Community Owner to request access to, correct, or delete any personal information that you have provided to us to ensure that it is complete, accurate, and as current as possible. We may not be able to accommodate your request if we believe it would violate any law or legal requirement or cause the information to be incorrect.

8. Jurisdiction-Specific Privacy Rights

The law in some jurisdictions may provide you with additional rights regarding our use of NPS Personal Data. To learn more about any additional rights that may be applicable to you as a resident of one of these jurisdictions, please see the privacy addendum for your jurisdiction that is attached to this Privacy Policy.

For Individuals Located in California

If you are located in California, you may have additional rights and your NPS Personal Data is processed as described in our California Privacy Addendum.

For Individuals Located within the European Economic Area or the United Kingdom

If you are located in the European Economic Area or the United Kingdom, you have the additional rights described in our [GDPR Privacy Addendum](#).

9. Do Not Track Signals

Our Services may use automated data collection technologies to collect information about your online activities over time and across third-party websites or other online services (behavioral tracking). Some web browsers or operating systems permit you to broadcast a signal to websites and online services indicating a preference that they “do not track” your online activities. At this time, we do not honor such signals and we do not modify what information we collect or how we use that information based upon whether such a signal is broadcast or received by us.

10. Data Security

We have implemented measures designed to secure your NPS Personal Data from accidental loss and from unauthorized access, use, alteration, and disclosure.

Unfortunately, the transmission of information via the internet is not completely secure. Although we do our best to protect your NPS Personal Data, we cannot guarantee the security of your NPS Personal Data transmitted to our Services. Any transmission of NPS Personal Data is at your own risk. We are not responsible for circumvention of any privacy settings or security measures contained on the Services.

11. Consent to Processing of Personal Data in the United States

If you do not reside in the United States, in order to provide our Services and legal updates to you, we may send and store your NPS Personal Data outside of your home country, including to the United States. Accordingly, your NPS Personal Data may be transferred outside the country where you reside or are located, including to countries that may not or do not provide an equivalent level of protection for your NPS Personal Data. Your information may be processed and stored in the United States and United States federal, state, and local governments, courts, or law enforcement or regulatory agencies may be able to obtain disclosure of your information through the laws of the United States. By using our Services, you represent that you have read and understood the above and hereby consent to the storage and processing of your NPS Personal Data outside the country where you reside or are located, including in the United States.

12. Changes to Our Privacy Policy

We may change this Privacy Policy at any time. It is our policy to post any changes we make to our Privacy Policy on this page. If we make material changes to how we treat our users' NPS Personal Data, we will endeavor to notify you through a notice on the Website's home page and/or when you log into the Portal. The date this Privacy Policy was last revised is identified at the top of the page. You are responsible for ensuring we have an up-to-date active and deliverable email address for you, and for periodically visiting our Services and this Privacy Policy to check for any changes.

13. Contact Information

If you have any questions, concerns, complaints or suggestions regarding our Privacy Policy, have any requests related to your NPS Personal Data pursuant to applicable laws, or otherwise need to contact us, you may contact us at the contact information below. **To Contact NPS**

NPS
8605 Santa Monica Blvd. Suite 61378
West Hollywood, CA 90069-4109
United States
security@communityresport.com

NPS Privacy Policy Addendum for California Residents

Last Modified: December 12, 2024

1. Introduction

This Privacy Policy Addendum for California Residents (the “**California Privacy Addendum**”) supplements the information contained in National Portal Systems, LLC’s (“**NPS**,” or “**we**,” or “**us**”) Privacy Policy (the “**Privacy Policy**”) and describes our collection and use of Personal Data (as defined below) processed by NPS solely for NPS’s behalf. This California Privacy Addendum applies solely to all visitors, users, and others who reside in the State of California (“**Consumers**” or “**you**”). We adopt this notice to comply with the California Consumer Privacy Act of 2018 as amended by the California Privacy Rights Act of 2020 (collectively, the “**CPRA**”) and any terms defined in the CPRA have the same meaning when used in this notice.

2. Scope of this California Privacy Addendum

Throughout this California Privacy Addendum, the term “**Personal Data**” means any information that identifies, relates to, describes, references, or is capable of being associated with, or could reasonably be linked, directly or indirectly, with you or your household. The term “**Community Owner**” means an owner, operator, or manager of the community in which you reside.

Generally, the Community Owner controls your use of your Personal Data related to your residency (or application for residency) at a Community Owner’s property, such as your unit number, lease terms, credit history, rental amount, payment history, and maintenance requests and history (“**Community Owner Personal Data**”). NPS only processes Community Owner Personal Data on behalf of the Community Owner and in accordance with their instructions and all processing of Community Owner Personal Data is governed by the Community Owner’s Privacy Policy and not this California Privacy Addendum. For more information about the Community Owner’s processing of your Personal Data, please contact the Community Owner directly. This California Privacy Policy applies to all other Personal Data that we collect on our Website for our own behalf, such as cookies used on the Website, your username and password used to access the Website, and other similar information not related to your residency (“**NPS Personal Data**”).

This California Privacy Addendum also does not apply to employment-related Personal Data collected from NPS’s own California-based employees, job applicants, contractors, or similar individuals (“**Personnel**”). Please contact your local human resources department if you are part of our California Personnel and would like additional information about how we process your Personal Data.

This California Privacy Addendum also does not apply to Personal Data reflecting a written or verbal business-to-business communication (“**B2B Personal Data**”). Please see our California Privacy Addendum for B2B Personal Data for information regarding our practices regarding your B2B Personal Data.

3. Information We Collect About You and How We Collect It

NPS’s Website collects, and over the prior twelve (12) months have collected, the following categories of NPS Personal Data about Consumers:

Personal Data Category	Applicable Pieces of Personal Data Collected
Identifiers.	A real name associated with your username and password used to access the Website; alias/nickname; username; unique online identifier; Internet Protocol address; email address; and other similar identifiers.
Personal Data categories listed in the California Customer Records statute (Cal. Civ. Code § 1798.80(e)).	A real name associated with your username and password used to access the Website. <i>Some Personal Data included in this category may overlap with other categories.</i>
Internet or other similar network activity.	Browsing history; search history; information on a Consumer’s interaction with a website, application, or advertisement.
Geolocation data.	We collect IP-based information about your physical location or movements. This IP-based information can only identify your physical location or movements to a geographic region, such as town, city, state, and country, but cannot be used to identify your precise physical location or movements.

NPS will not collect additional categories of Personal Data without providing you notice. We do not “sell” any categories of Personal Data for monetary or other valuable consideration and we do not “share” any categories of Personal Data for cross-context behavioral advertising.

4. Sources of NPS Personal Data

We collect NPS Personal Data about you from the sources described in our Privacy Policy.

5. Purposes for Our Collection of Your NPS Personal Data

We only use your NPS Personal Data for the purposes described in our Privacy Policy. NPS will not use the NPS Personal Data we collected for materially different, unrelated, or incompatible purposes without providing you notice.

6. Third Parties to Whom Do We Disclose Your NPS Personal Data for Business Purposes

NPS may disclose Community Owner Personal Data to the Community Owner (or their service providers) for their own purposes.

NPS may disclose your NPS Personal Data to third parties for one or more business purposes.

In the preceding twelve (12) months, NPS has disclosed the following categories of NPS Personal Data for one or more of the business purposes described below to the following categories of third parties:

Personal Data Category	Categories of Third Party Recipients
Identifiers.	Service Providers; affiliates, parents, and subsidiary organizations of NPS; Internet cookie information recipients, such as analytics and behavioral advertising services.
Personal Data categories listed in the California Customer Records statute (Cal. Civ. Code § 1798.80(e)).	Service Providers; affiliates, parents, and subsidiary organizations of NPS.
Internet or other similar network activity.	Service Providers; affiliates, parents, and subsidiary organizations of NPS; Internet cookie information recipients, such as analytics and behavioral advertising services.
Geolocation data.	Service Providers; affiliates, parents, and subsidiary organizations of NPS.

We disclose your NPS Personal Data to the categories of third parties listed above for the following business or commercial purposes:

- Helping to ensure security and integrity of our products, services, and IT infrastructure to the extent the use of the NPS Personal Data is reasonably necessary and proportionate for these purposes.
- Debugging to identify and repair errors that impair existing intended functionality.
- Performing services on behalf of us, including maintaining or servicing accounts, providing customer service, processing or fulfilling orders and transactions, verifying customer information, processing payments, providing financing, providing analytic services, providing storage, or providing similar services on behalf of us.
- Undertaking internal research for technological development and demonstration.
- Undertaking activities to verify or maintain the quality or safety of a service or device that is owned, manufactured, manufactured for, or controlled by us, and to improve, upgrade, or enhance the service or device that is owned, manufactured, manufactured for, or controlled by us.

In addition to the above, we may disclose any or all categories of NPS Personal Data to any third-party (including government entities and/or law enforcement entities) as necessary to:

- comply with federal, state, or local laws, or to comply with a court order or subpoena to provide information;
- comply with a civil, criminal, or regulatory inquiry, investigation, subpoena, or summons by federal, state, or local authorities;
- cooperate with law enforcement agencies concerning conduct or activities that we (or one of our service providers') believe may violate federal, state, or local law;

- comply with certain government agency requests for emergency access to your NPS Personal Data if you are at risk or danger of death or serious physical injury; or
- exercise or defend legal claims.

7. Consumer Data Requests

The CPRA provides California residents with specific rights regarding their NPS Personal Data. This section describes your CPRA rights related to NPS Personal Data and explains how to exercise those rights. Your Community Owner may provide some or different rights related to Community Owner Personal Data. You must contact them regarding your rights related to Community Owner Personal Data and to exercise those rights. We cannot accept requests to exercise any rights related to Community Owner Personal Data.

You may exercise these rights yourself or through your Authorized Agent. For more information on how you or your Authorized Agent can exercise your rights, please see [Exercising Your CPRA Privacy Rights](#).

- **Right to Know.** You have the right to request that NPS disclose certain information to you about our collection and use of your NPS Personal Data over the past 12 months (a “**Right to Know**” Consumer Request). This includes: (a) the categories of NPS Personal Data we have collected about you; (b) the categories of sources from which that NPS Personal Data came from; (c) our purposes for collecting this NPS Personal Data; (d) the categories of third parties with whom we have shared your NPS Personal Data; and (e) if we have “sold” or “shared” or disclosed your NPS Personal Data, a list of categories of third parties to whom we “sold” or “shared” your NPS Personal Data, and a separate list of the categories of third parties to whom we disclosed your NPS Personal Data to. You must specifically describe if you are making a Right to Know request or a Data Portability Request. If you would like to make both a Right to Know Consumer Request and a Data Portability Consumer Request you must make both requests clear in your request. If it is not reasonably clear from your request, we will only process your request as a Right to Know request. You may make a Right to Know or a Data Portability Consumer Request a total of two (2) times within a 12-month period at no charge.
- **Access to Specific Pieces of Information (Data Portability).** You also have the right to request that NPS provide you with a copy of the specific pieces of NPS Personal Data that we have collected about you, including any NPS Personal Data that we have created or otherwise received from a third-party about you (a “**Data Portability**” Consumer Request). If you make a Data Portability Consumer Request electronically, we will provide you with a copy of your NPS Personal Data in a portable and, to the extent technically feasible, readily reusable format that allows you to transmit the NPS Personal Data to another third-party. You must specifically describe if you are making a Right to Know request or a Data Portability request. If you would like to make both a Right to Know Consumer Request and a Data Portability Consumer Request you must make both requests clear in your request. If it is not reasonably clear from your request, we will only process your request as a Right to Know request. We will not disclose any NPS Personal Data that may be subject to an exception under the CPRA. If we are unable to disclose certain pieces of your NPS Personal Data, we will describe generally the types of NPS Personal Data that we were unable to disclose and provide you a description of the reason we are unable to disclose it. You may make a Right to Know or a Data Portability Consumer Request a total of two (2) times within a 12-month period at no charge.
- **Correction.** You have the right to request that we correct any incorrect NPS Personal Data about you to ensure that it is complete, accurate, and as current as possible. You may review and correct some NPS Personal Data about yourself by logging into the Website and visiting your “**Account**” page. You may also request that we correct the NPS Personal Data we have about you as described below under [Exercising Your CPRA Privacy Rights](#). In some cases, we may require you to provide reasonable documentation to show that the NPS Personal Data we have about you is incorrect and what the correct NPS Personal Data may be. We may also not be able to accommodate your request if we believe it would violate any law or legal requirement or cause the information to be incorrect or if the NPS Personal Data is subject to another exception under the CPRA.
- **Deletion.** You have the right to request that NPS delete any of your NPS Personal Data that we collected from you and retained, subject to certain exceptions. Once we receive and confirm your Consumer Request (see [Exercising Your CPRA Privacy Rights](#)), we will delete (and direct our service providers to delete) your NPS Personal Data from our records, unless an exception applies pursuant to the CPRA. We can generally only delete your NPS Personal Data by closing your account, which may be restricted by your Community Owner. Some exceptions to your right to delete include, but are not limited to, if we are required to retain your NPS Personal Data to complete the transaction or provide you the goods and services for which we collected the NPS Personal Data or otherwise perform under our contract with you, to detect security incidents or protect against other malicious activities, and to comply with legal obligations. We may also retain your NPS Personal Data for other internal and lawful uses that are compatible with the context in which we collected it.
- **Non-Discrimination.** We will not discriminate against you for exercising any of your CPRA rights. Unless permitted by the CPRA, we will not do any of the following as a result of you exercising your CPRA rights: (a) deny you goods or services; (b) charge you different prices or rates for goods or services, including through granting discounts or other benefits, or imposing penalties; (c) provide you a different level or quality of goods or

services; or (d) suggest that you may receive a different price or rate for goods or services or a different level or quality of goods or services.

Exercising Your CPRA Privacy Rights

To exercise the rights described above, please submit a request (a “**Consumer Request**”) to us by either:

- Emailing us at security@communityresport.com
- Logging into your account on the Website (access requests only).

If you fail to make your Consumer Request in accordance with the ways described above, we may either treat your request as if it had been submitted with our methods described above or provide you with information on how to submit the request or remedy any deficiencies with your request.

Only you, or your Authorized Agent that you authorize to act on your behalf, may make a Consumer Request related to your NPS Personal Data. To designate an Authorized Agent, see [Authorized Agents](#) below.

All Consumer Requests must:

- Provide sufficient information that allows us to reasonably verify you are the person about whom we collected NPS Personal Data or an Authorized Agent of such a person. This may include:
 - Requesting that you verify certain information that we may already have in your account, including Community Owner Personal Data.
- Describe your request with sufficient detail that allows us to properly understand, evaluate, and respond to it.

We cannot respond to your request or provide you with NPS Personal Data if we cannot verify your identity or authority to make the request and confirm which NPS Personal Data relates to you or the individual for whom you are making the request as their Authorized Agent.

Making a Consumer Request does not require you to create an account with us. However, we do consider requests made through your password protected account sufficiently verified when the request relates to NPS Personal Data associated with that specific account.

We will only use NPS Personal Data provided in a Consumer Request to verify the requestor’s identity or authority to make the request.

Authorized Agents

You may authorize your agent to exercise your rights under the CPRA on your behalf by providing them with written authorization or with power of attorney to exercise your rights in accordance with applicable laws (an “**Authorized Agent**”). We may request that your Authorized Agent submit proof of identity and that they have been authorized exercise your rights on your behalf. We may deny a request from your Authorized Agent to exercise your rights on your behalf if they fail to submit adequate proof of identity or adequate proof that they have the authority to exercise your rights.

Response Timing and Format

We will confirm our receipt of your Consumer Request within ten (10) business days of its receipt. We will generally process these requests within forty-five (45) calendar days of its receipt. If we require more time (up to an additional 45 calendar days), we will inform you of the reason and extension period in writing.

If you have an account with us, we will deliver our written response to that account. If you do not have an account with us, we will deliver our written response by mail or electronically, at your option.

In response to a Right to Know or Data Portability Consumer Request, we will provide you with all relevant information we have collected or maintained about you in the twelve (12) month period preceding our receipt of your request (or, if you request, since January 1, 2022), unless an exception applies. The response we provide will also explain the reasons we cannot comply with a Consumer Request, if applicable. For Data Portability Consumer Request, we will select a format to provide your NPS Personal Data that is readily useable and should allow you to transmit the information from one entity to another entity without hindrance.

We do not charge a fee to process or respond to your Consumer Request unless it is excessive, repetitive, or manifestly unfounded. We reserve the right to consider more than two (2) total Right to Know or Data Portability Consumer Requests (or combination of the two) in a twelve (12) month period to be repetitive and/or excessive and require a fee. If we determine that your Consumer Request warrants a fee, we will tell you why we made that decision and provide you with a cost estimate before completing your request.

8. NPS Personal Data Retention Periods

NPS will retain your NPS Personal Data for one (1) year after you are no longer a resident at the community. After this period, we may retain your NPS Personal Data for any of the reasons listed below:

- when stored in our backup and disaster recovery systems. Your NPS Personal Data will be deleted when the backup media your NPS Personal Data is stored on expires or when our disaster recovery systems are updated;
- when necessary for us to exercise or defend legal claims;
- when necessary to comply with a legal obligation;
- when stored in the same document or record with other NPS Personal Data. Your NPS Personal Data will be deleted upon the expiration of the last exception that applies to such document or record; or
- when necessary to help ensure the security and integrity of our Website and IT systems.

9. Changes to This California Privacy Addendum

NPS reserves the right to amend this California Privacy Addendum at our discretion and at any time. When we make changes to this California Privacy Addendum, we will post the updated addendum on the Website and update the addendum's effective date. **Your continued use of our Website following the posting of changes constitutes your acceptance of such changes.**

10. Contact Information

If you have any questions or comments about this California Privacy Addendum, the ways in which NPS collects and uses your information described above and in the Privacy Policy, your choices and rights regarding such use, or wish to exercise your rights under California law, please do not hesitate to contact us at:

Postal Address: National Portal Systems, LLC
8605 Santa Monica Blvd. PMB 61378
Los Angeles, CA 90069-4109
United States

Last Modified: December 12, 2024

1. Introduction

This **GDPR and UK-GDPR Privacy Addendum** (the “GDPR Privacy Addendum”) supplements the information contained in the NPS Privacy Policy and applies solely to all users of our Website who are located in the European Economic Area, the United Kingdom, or Switzerland. We adopt this GDPR Privacy Addendum to comply with the General Data Protection Regulation (2016/679) and any implementing acts of the foregoing by any of the member states of the European Economic Area, the United Kingdom (including the UK-GDPR), or Switzerland (collectively, the “**GDPR**”) and any terms defined in the GDPR or our Privacy Policy have the same meaning when used in this GDPR Privacy Addendum. When applicable to you, this GDPR Privacy Addendum takes precedence over anything contradictory in our Privacy Policy.

2. Data Processor, Data Protection Officer, and Representative

Except for cookies that we use on our Portal, the Community Owner is the controller of your Personal Data and NPS is generally the data processor of your Personal Data. You can learn more about their privacy practices concerning your Personal Data by reviewing the Community Owner’s privacy notice. NPS is, however, the controller solely for the use of cookies in providing the Portal and solely to the extent these cookies contain your Personal Data. Please see the NPS Privacy Policy for information about our use of cookies and the rights you may have regarding these cookies. NPS has appointed a representative in the United Kingdom a Data Protection Officer in compliance with the General Data Protection Regulation and UK General Data Protection Regulation. NPS, its representatives, or its Data Protection Officer may be contacted in any manner set forth below in the “[Contact Information](#)” Section of this GDPR Privacy Addendum. Except for cookies that we use on our Website, and for your username and password, and other similar information specific to your use of the Website and not related to your residency with the Community Owner’s property, the Community Owner is the controller of your Personal Data and NPS is generally the data processor of your Personal Data (the “**Community Owner Personal Data**”). You can learn more about their privacy practices concerning your Personal Data by reviewing the Community Owner’s privacy notice. NPS is, however, the controller solely for other Personal Data that we collect on our Website for our own behalf, such as cookies used on the Website, your username and password used to access the Website, and other similar information not related to your residency (“**NPS Personal Data**”). Please see the NPS Privacy Policy for information about our use of NPS Personal Data and the rights you may have regarding these cookies. NPS has appointed a Data Protection Officer and a representative in the United Kingdom and the EU in compliance with the General Data Protection Regulation and UK General Data Protection Regulation. NPS, its representatives, or its Data Protection Officer may be contacted in any manner set forth below in the “[Contact Information](#)” Section of this GDPR Privacy Addendum.

3. Lawful Basis for Processing Your Personal Data

If you are in the European Union, the processing of your NPS Personal Data is lawful only if it is permitted under the applicable data protection laws. We have a lawful basis for each of our processing activities (except when an exception applies as described below):

- **Consent.** By using our Website, you consent to our collection, use, and sharing of your NPS Personal Data as described in this Privacy Policy. If you do not consent to this privacy policy, please do not use the Website;
- **Legitimate Interests.** We will process your NPS Personal Data as necessary for our legitimate interests. Our legitimate interests are balanced against your rights and freedoms and we do not process your NPS Personal Data if your rights and freedoms outweigh our legitimate interests. Our legitimate interests are to: facilitate communication between NPS and you; detect and correct bugs and to improve our Website; safeguard our IT infrastructure and intellectual property; detect and prevent fraud and other crime; promote and market our business; perform risk assessments; and provide our services to you such as providing a platform that enables you to manage your rental agreement with your Community Owner;
- **As Required by Law.** We may also process your NPS Personal Data when we are required or permitted to by law; to comply with government inspections, audits, and other valid requests from government or other public authorities; to respond to legal process such as subpoenas; or as necessary for us to protect our interests or otherwise pursue our legal rights and remedies (for instance, when necessary to prevent or detect fraud, attacks against our network, or other criminal and tortious activities), defend litigation, and manage complaints or claims.

4. Automated Decisions Making

NPS does not use your NPS Personal Data with any automated decision making process, including profiling, which may produce a legal effect concerning you or similarly significantly affect you.

5. Your Rights Regarding Your Information and Accessing and Correcting Your Information

The GDPR provides you with specific rights regarding their NPS Personal Data. This section describes your GDPR rights related to NPS Personal Data and explains how to exercise those rights. Your Community Owner may provide some or different rights related to Community Owner Personal Data. You must contact them regarding your rights related to Community Owner Personal Data and to exercise those rights. We cannot accept requests to exercise any rights related to Community Owner Personal Data.

- **Access and Update.** You can review and change a portion of your NPS Personal Data by logging into the Websites and accessing a website form. Additionally, you may notify the Community Owner to request access to, correct, or delete any personal information that you have provided to us to ensure that it is complete, accurate, and as current as possible. We may also not be able to accommodate your request if we believe it would violate any law or legal requirement or cause the information to be incorrect.
- **Restrictions.** You have the right to request the Community Owner to restrict our processing of your NPOS Personal Data under certain circumstances. In particular, you can make this request if you contest its accuracy, if the processing of your NPS Personal Data is determined to be unlawful, or if we no longer need your NPS Personal Data for processing but we have retained it as permitted by law.
- **Portability.** To the extent the NPS Personal Data you provide NPS is processed based on your consent and that we process it through automated means, you have the right to request that the Community Owner provide you a copy of, or access to, all or part of such NPS Personal Data in structured, commonly used and machine-readable format. You also have the right to request that the Community Owner transmit this NPS Personal Data to another controller, when technically feasible.
- **Withdrawal of Consent.** To the extent that our processing of your NPS Personal Data is based on your consent, you may withdraw your consent at any time by contacting the Community Owner. Withdrawing your consent will not, however, affect the lawfulness of the processing based on your consent before its withdrawal, and will not affect the lawfulness of our continued processing that is based on any other lawful basis for processing your NPS Personal Data.
- **Right to be Forgotten.** You may have the right to request that the Community Owner to instruct us to delete all of your NPS Personal Data. We will only delete your NPS Personal Data when we no longer have a lawful basis for processing your NPS Personal Data or after a final determination that your NPS Personal Data was unlawfully processed. We may not accommodate a request to erase information if we or the Community Owner believe the deletion would violate any law or legal requirement or cause the information to be incorrect. In all other cases, we will retain your NPS Personal Data as set forth in this policy. In addition, we cannot completely delete your NPS Personal Data as some data may rest in previous backups. These will be retained for the periods set forth in our disaster recovery policies.
- **Complaints.** You have the right to lodge a complaint with the applicable supervisory authority in the country you live in, the country you work in, or the country where you believe your rights under applicable data protection laws have been violated. However, before doing so, we request that you contact us directly in order to give us an opportunity to work directly with you to resolve any concerns about your privacy.
- **How You May Exercise Your Rights.** You may exercise any of the above rights by contacting the Community Owner. If you contact us to exercise any of the foregoing rights, we will direct you to make your request with the Community Owner as the controller of your NPS Personal Data. We are not able to comply with requests made directly to us unless otherwise authorized by the Community Owner.

6. Consent to Processing of Personal Data in the United States

If you are a resident of the European Economic Area (“EEA”), United Kingdom, or Switzerland, in order to provide our Website and legal updates to you, we may send and store your NPS Personal Data outside of these areas, including to the United States. Accordingly, your NPS Personal Data may be transferred outside the country where you reside or are located, including to countries that may not or do not provide an equivalent level of protection for your NPS Personal Data. Your information may be processed and stored in the United States and United States federal, state, and local governments, courts, or law enforcement or regulatory agencies may be able to obtain disclosure of your information through the laws of the United States. By using our Website, you represent that you have read and understood the above and hereby consent to the storage and processing of your NPS Personal Data outside the country where you reside or are located, including in the United States.

Your NPS Personal Data is transferred by NPS to another country only if it is required or permitted under applicable data protection law and provided that there are appropriate safeguards in place to protect your NPS Personal Data. To ensure your NPS Personal Data is treated in accordance with this Privacy Policy, NPS uses Data Protection Agreements between NPS and all other recipients of your data that include, where applicable, the Standard Contractual Clauses adopted by the European Commission (the “**Standard Contractual Clauses**”). The European Commission

has determined that the transfer of NPS Personal Data pursuant to the Standard Contractual Clauses may provide for an adequate level of protection of your NPS Personal Data, but may need to be supplemented with additional measures on a case-by-case basis. When we believe this to be appropriate and necessary, these Standard Contractual Clauses have been supplemented in this way. Under these Standard Contractual Clauses, you have the same rights as if your data was not transferred to such third party. You may request a copy of the Data Protection Agreement by contacting us through the [Contact Information](#) below.

7. Data Retention Periods

NPS will retain your NPS Personal Data for the entire time that you keep your account open. After you close your account, we may retain your NPS Personal Data:

- For the length of our contract with the Community Owner plus one (1) year;
- for as long as necessary to comply with any legal requirement;
- on our backup and disaster recovery systems in accordance with our backup and disaster recovery policies and procedures;
- for as long as necessary to protect our legal interests or otherwise pursue our legal rights and remedies; and
- for data that has been aggregated or otherwise rendered anonymous in such a manner that you are no longer identifiable, indefinitely.

8. Changes to this GDPR Privacy Addendum

We reserve the right to amend this GDPR Privacy Addendum at our discretion and at any time and at any time and as further described in our Privacy Policy. When we make changes to this GDPR Privacy Addendum, we will post the updated notice on the Website and update the Policy's effective date. **Your continued use of our Website following the posting of changes constitutes your acceptance of such changes.**

9. Contact Information

If you have any questions, concerns, complaints or suggestions regarding this GDPR Privacy Addendum, have any requests related to your NPS Personal Data pursuant to applicable laws, or otherwise need to contact us, you must contact us directly via the contact information in the Privacy Policy. If you wish to contact our Data Protection Officer or our representative in the European Economic Area or the United Kingdom, you may do so at the contact information below.

To Contact NPS (Processor)

NPS
8605 Santa Monica Blvd. PMB 61378
Los Angeles, CA 90069-4109
United States
security@communityresport.com

To Contact Our Data Protection Officer

Phil Lopez
8605 Santa Monica Blvd. PMB 61378
Los Angeles, CA 90069-4109
United States
security@communityresport.com

To Contact Our Representative in the United Kingdom

DataRep UK
107-111 Fleet Street
London, EC4A 2AB
United Kingdom
datarequest@datarep.uk
www.datarep.uk/data-request